

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND
THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2024-2181, 2024-2182, 2024-2744, 2024-2763, 2024-3003, 2024-3008, 2024-3969 and 2024-3970

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE CERTIFICATION TO PRACTICE AS AN ADDICTION SPECIALIST IN THE STATE OF COLORADO OF ELIZABETH MAY MCLAIN, LICENSE NO. LPC.0004293, CERTIFICATION NO. ACC.0006343,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners and the State Board of Addiction Counselor Examiners (together, “Boards”) and Elizabeth May McLain (“Respondent”), as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).

2. Respondent was licensed to practice as a professional counselor (“LPC”) and certified to practice as an addiction specialist (“CAS”) in the State of Colorado at all times relevant herein. On or about April 22, 2024, Respondent’s license and certification entered in to Active-With Conditions status and both are currently Active-With Conditions.

3. This Order is a full and final resolution of case numbers 2024-2181, 2024-2182, 2024-2744, 2024-2763, 2024-3003, 2024-3008, 2024-3969 and 2024-3970. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.

4. Based on its review of case numbers 2024-2181, 2024-2182, 2024-2744, 2024-2763, 2024-3003, 2024-3008, 2024-3969 and 2024-3970 the Board alleges that Respondent violated sections 12-245-224(1)(f)(I) and (f)(II), C.R.S. Respondent denies the Board’s allegations.

5. Although Respondent denies the Board’s allegations, Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated sections 12-245-224(1)(f)(I) and (f)(II), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(f)(I) Fails to notify the board that regulates the person's profession of a physical illness, physical condition, or behavioral, mental health, or substance use disorder that affects the person's ability to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care; and

(II) Fails to act within the limitations created by a physical illness, physical condition, or behavioral, mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes her license to practice as an LPC in Colorado and her certification to practice as a CAS in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S. Respondent agrees not to reapply for licensure to practice as an LPC in Colorado and/or certification to practice as a CAS in the State of Colorado at any time in the future.

7. Following relinquishment of her license to practice as an LPC in Colorado and her certification to practice as a CAS in the State of Colorado, Respondent shall not perform any act requiring a license to practice as an LPC in Colorado and/or certification to practice as a CAS in the State of Colorado.

8. Respondent also agrees not to perform any act constituting psychotherapy as defined under section 12-245-202(14), C.R.S.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

16. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

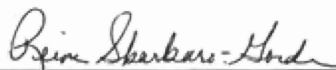
RESPONDENT

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND STATE BOARD
OF ADDICTION COUNSELOR EXAMINERS



ELIZABETH MAY MCLAIN
LICENSE NO. LPC.0004293
CERTIFICATION NO. ACC.0006343



REINA SBARBARO-GORDON
Program Director

APPROVED AS TO FORM
FOR RESPONDENT

Effective this 29th day of August,
2024.



ROBERT A. LEES
Robert A. Lees & Associates